

Calendar line 1**Case Name:** *The Trust of John Mota***Case No.:** 24PR197996**INTRODUCTION**

Petitioner Lisa Luca (“Petitioner”) initiated this case, filing a petition to contest the Mota Trust based on undue influence, lack of capacity, and financial elder abuse. The petition also sought return of trust property and an injunction preventing the use of trust funds for the defense. The petition named as respondent Pamela Milligin (“Respondent”), trustee of the Mota Trust. Milligin has filed an opposition to the petition.

Currently before the court is Petitioner’s counsel’s motion to appear *pro hac vice*. The motion is unopposed.

DISCUSSION**I. Legal Background****A. Eligibility**

“A person who is not a licensee of the State Bar of California but who is an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel *pro hac vice*, provided that an active licensee of the State Bar of California is associated as attorney of record. No person is eligible to appear as counsel *pro hac vice* under this rule if the person is: (1) A resident of the State of California; (2) Regularly employed in the State of California; or (3) Regularly engaged in substantial business, professional, or other activities in the State of California.” (Cal. Rules of Court, rule 9.40(a), formatting altered.)

B. Application

“A person desiring to appear as counsel *pro hac vice* in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.” (Cal. Rules of Court, rule 9.40(c)(1).)

The application must state:

- (1) The applicant’s residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;

- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

II. Merits of the Instant Motion

Here, Petitioner's counsel to be appearing *pro hac vice* has filed a sworn application providing all of the necessary information. Counsel appears to be eligible based on the sworn application. The proof of service attached to the application shows timely service on Respondent, the only other party to appear in this case, as well as other interested parties. No opposition has been filed. Accordingly, the motion is GRANTED.

CONCLUSION

The motion to appear *pro hac vice* is GRANTED.

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Calendar line 2**Case Name:** *The Conservatorship of Marcia McKenna***Case No.:** 24PR198682**INTRODUCTION**

On November 25, 2024, Petitioner Michelle McKenna (“Petitioner”) initiated this case filing a petition for probate conservatorship over her stepmother Marcia McKenna (“Proposed Conservatee”). On February 6, 2025, Petitioner filed a petition for temporary conservatorship over the person and the estate of Proposed Conservatee pending hearing on the petition. On February 13, 2025, Reginald Coates (“Objector”), Proposed Conservatee’s brother, who holds a power of attorney allowing him to make decisions on behalf of Proposed Conservatee, filed an objection to the petition for probate conservatorship.

On February 18, 2025, this court granted the petition for temporary conservatorship. On March 18, 2025, letters of temporary conservatorship issued to Petitioner.

Currently before the court is Objector’s motion for reconsideration of the order granting the temporary conservatorship. The motion is opposed.

DISCUSSION**III. Legal Background**

Objector makes his motion for reconsideration under Code of Civil Procedure section 1008.¹ Section 1008 provides, “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (§ 1008, subd. (a).) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (§ 1008, subd. (a).)

“Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial. [Citation.]” (*Id.* at pp. 212-213.)

¹ All further undesignated statutory references are to the Code of Civil Procedure.